

25STCV11704 25STCV11704

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-19

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Case Number: 25STCV11704 Hearing Date: August 19, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

19, 2026 TRIAL

DATE: Disposed by settlement

CASE: Karina De Veyra v. Volkswagen Group of America, Inc.

CASE NO.: 25STCV11704

MOTION

FOR PLAINTIFF'S ATTORNEY FEES, COURT COSTS,

AND

LITIGATION EXPENSES

MOVING PARTY: Plaintiff

Karina De Veyra

RESPONDING PARTY: Defendant Volkswagen

Group of America, Inc.

I. BACKGROUND

On April 22, 2025, Plaintiff, Karina De Veyra, filed this action against Defendant, Volkswagen Group of America, Inc., for violations of the Song-Beverly Consumer Warranty

Act.

On February 12, 2026, Defendant proposed a statutory offer to compromise. On March 6, 2026, Plaintiff accepted the offer.

On May 12, 2026, Plaintiff filed this motion for attorney's fees and costs and concurrently filed a Memorandum of Costs.

On August 6, 2026, Defendant filed an opposition.

On August 11, 2026, Plaintiff filed a reply.

II. DISCUSSION

Plaintiff

seeks a total award of \$38,269.98, which consists of \$33,547.50 in attorney's fees, \$1,367.73 in costs, and a lodestar multiplier of 1.1 in the amount of \$3,354.75.

On March 6, 2026, the parties agreed to settle the matter.

Under the compromise, Plaintiff may seek reasonable attorney's fees and costs by motion. Defendant takes issue with (1) the reasonableness of the fees requested, and (2) the reasonableness of the hours billed. Defendant does not challenge the claimed costs.

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate...." "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the

hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The court has broad discretion in determining the amount of a reasonable attorney’s fee award which will not be overturned absent a “manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence.” (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The court need not explain its calculation of the amount of attorney’s fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

A. Reasonable Hourly Rate

Two attorneys worked on this matter for Plaintiff, including Isaac Kohen, who billed at \$575 per hour, and Tamara R. Artolozaga, who billed at \$375 per hour. Defendant challenges the reasonableness of Mr. Kohen’s rate. After consideration of the issue, finds Mr. Kohen’s billing rate is reasonable. The court will not reduce any billing rates. The court proceeds to consider the number of hours reasonably expended.

B. Number of Hours Reasonably Expended

Plaintiff’s records reflect a total of 69.3 hours billed, which includes hours spent drafting this motion, reviewing the opposition, drafting a reply, and appear at the hearing for this motion.

“[I]t is the burden of the challenging party to point to the specific items challenged [within the moving party’s verified billing invoice], with a sufficient argument and citations to evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

Defendant challenges specific entries. The court agrees with many of Defendant's challenges, which include the amount of time Plaintiff's counsel billed for preparing the complaint (11.8 hours), responding to and preparing basic written discovery (11.9 hours), and time incurred for preparing the fees motion, reviewing the opposition, drafting a reply, and attending the hearing (13.3 hours). The court agrees the time billed for these foregoing tasks is unreasonable. There was little law and motion practice, very little discovery propounded, and nothing particularly complex or unique about this case. This case settled less than a year after it was filed. Accordingly, the court will not credit the entire time billed. The court declines to award a multiplier.

In total, the court awards \$18,000.00 in attorney's fees.

III. CONCLUSION

Plaintiff is awarded \$18,000.00 in attorney's fees and \$1,367.73 in costs.

Moving party to give notice, unless waived.

Dated: August 19, 2026

Brock T. Hammond

Judge of the
Superior Court